CHAPTER 35 STATE JUDICIARY

The state judiciary consists of a high court and a hierarchy of subordinate courts, also known as lower courts. The subordinate courts are so-called because of their subordination to the state high court. They function below and under the high court at district and lower levels.

CONSTITUTIONAL PROVISIONS

Articles 233 to 237 in Part VI of the Constitution make the following provisions to regulate the organisation of subordinate courts and to ensure their independence from the executive[1].

1. Appointment of District Judges The appointment, posting and promotion of district judges in a state are made by the governor of the state in consultation with the high court.

A person to be appointed as a district judge should have the following qualifications:

1. He/she should not already be in the service of the Central or the state government.
2. He/she should have been an advocate or a pleader for seven years.
3. He/she should be recommended by the high court for appointment.

2. Appointment of other Judges Appointment of persons (other than district judges) to the judicial service of a state are made by the governor of the state after consultation with the State Public Service Commission and the high court[2].

3. Control over Subordinate Courts The control over district courts and other subordinate courts including the posting, promotion and leave of persons belonging to the judicial service of a state and holding any post inferior to the post of district judge is vested in the high court.

4. Interpretation The expression 'district judge' includes the judges of a city civil court, additional district judge, joint district judge, assistant district judge, chief judge of a small cause court, chief presidency magistrate, additional chief presidency magistrate, sessions judge, additional sessions judge and assistant sessions judge.



The expression 'judicial service' means a service consisting exclusively of persons intended to fill the post of district judge and other civil judicial posts inferior to the post of a district judge.

5. Application of the above Provisions to Certain Magistrates The Governor may direct that the above-mentioned provisions relating to persons in the state judicial service would apply to any class or classes of magistrates in the state.

STRUCTURE AND JURISDICTION